

JUDICIAL IMMUNITY

WEDNESDAY, OCTOBER 25, 1989

U.S. SENATE,
SUBCOMMITTEE ON COURTS AND ADMINISTRATIVE PRACTICE,
COMMITTEE ON THE JUDICIARY,
Washington, DC.

The subcommittee met, pursuant to notice, at 2:50 p.m., in room SD-226, Dirksen Senate Office Building, Hon. Howell Heflin (chairman of the subcommittee) presiding.

Also present: Senator Thurmond.

OPENING STATEMENT OF HON. HOWELL HEFLIN, A U.S. SENATOR FROM THE STATE OF ALABAMA

Senator HEFLIN. The subcommittee will come to order.

Good afternoon, I am sorry we are late in getting started. I would like to welcome you to the Senate Judiciary Subcommittee hearing on judicial immunity.

In 1868, the need for judicial immunity was explained in the following manner:

It is essential in all courts that judges who are appointed to administer the law should be permitted to administer it under the protection of the law, independently and freely, without favor, without fear.

This provision of the law is not for the protection nor the benefit of a malicious or corrupt judge, but for the benefit of the public, whose interest it is that judges should be at liberty to exercise their functions with independence and without fear of consequences.

Although the statement was written more than 120 years ago, I believe it is just as applicable today as it was then. Certainly, judicial independence is no less important today as it was in 1868.

Unfortunately, this independence has been severely eroded by the 1984 U.S. Supreme Court decision in *Pulliam v. Allen*. In *Pulliam*, a sharply divided 5 to 4 court held that the doctrine of judicial immunity neither prevents injunctive relief in Federal civil rights actions challenging decisions of a State judge, nor bars attorney fee awards against the judge. In essence, *Pulliam* disregards four centuries of unbroken precedent and destroys an ancient doctrine that is the bedrock of the Anglo-American system of justice.

Understandably, this decision has caused a tremendous amount of concern among our Nation's judicial officers. Indeed, at the time *Pulliam* was handed down, the Conference of Chief Justices said of that decision: "No development in recent times has aroused greater concern on the part of State judges." If anything, that concern is greater today. Judges fear that this decision will have a chilling